IN THE COURT OF THE CIVIL JUDGE (SENIOR DIVISION), RATNAGIRI

REGULAR CIVIL SUIT NO. 214 OF 2025

(Under Section 6 read with Order VII Rule 1 of the Code of Civil Procedure, 1908, and under the provisions of the Maharashtra Land Revenue Code, 1966)

IN THE MATTER OF:

Mr. Dattatray Govind Pawar, aged 58 years, Occupation: Agriculture, residing at Village Kotawade, Taluka Sangameshwar, District Ratnagiri, Maharashtra — 415611 ... PLAINTIFF

VERSUS

1. Mr. Suresh Baban Chavan, aged 46 years, Occupation: Agriculture, residing at Village Kotawade, Taluka Sangameshwar, District Ratnagiri — 415611

2. The Tahsildar, Sangameshwar Taluka, District Ratnagiri, Maharashtra, in his official capacity ... DEFENDANTS

SUIT FOR DECLARATION, PERMANENT INJUNCTION, AND CORRECTION OF REVENUE RECORDS (7/12 EXTRACT) IN RESPECT OF AGRICULTURAL LAND BEARING SURVEY NO. 142, HISSA NO. 3, ADMEASURING 1 HECTARE 20 ARES, SITUATED AT VILLAGE KOTAWADE, TALUKA SANGAMESHWAR, DISTRICT RATNAGIRI

NOTICE UNDER SECTION 80 OF THE CODE OF CIVIL PROCEDURE, 1908

To,

The Tahsildar, Sangameshwar Taluka, District Ratnagiri, Maharashtra.

Sir,

Under instructions from and on behalf of my client, Mr. Dattatray Govind Pawar, resident of Village Kotawade, Taluka Sangameshwar, District Ratnagiri, I hereby serve upon you this statutory notice under Section 80 of the Code of Civil Procedure, 1908, and call upon you to take note of the following facts and to remedy the grievance stated herein within a period of two (2) months from the date of receipt of this notice, failing which my client shall be constrained to institute appropriate civil proceedings before the competent court, at your risk as to costs and consequences.

1. Background of Title

That my client's late father, Mr. Govind Narayan Pawar, was the recorded occupant (Class I, occupant-owner) of agricultural land bearing Survey No. 142, Hissa No. 3, admeasuring 1 Hectare 20 Ares, situated within the revenue limits of Village Kotawade, Taluka Sangameshwar, District Ratnagiri ("the suit land"), as is evident from the 7/12 extract maintained by your office for the years 1978 to 2004.

That upon the demise of Mr. Govind Narayan Pawar on 14th March 2004, my client, being the sole surviving legal heir, succeeded to the suit land by inheritance under the Hindu Succession Act, 1956, and mutation entry No. 1187 was accordingly certified in the village record of rights on 22nd September 2004, reflecting my client's name as occupant.

That my client has, since the said mutation, been in continuous, peaceful, and uninterrupted possession of the suit land, cultivating paddy and cashew crops thereon, and paying land revenue assessed thereon regularly, receipts whereof are in my client's possession and shall be produced as and when required.

2. Grievance

That my client discovered, upon obtaining a certified copy of the current 7/12 extract on 3rd January 2025, that the name of Defendant No. 1, Mr. Suresh Baban Chavan, has been fraudulently and illegally entered as a joint occupant of the suit land vide mutation entry No. 2456 dated 11th July 2024, purportedly on the strength of a registered sale deed dated 2nd June 2024 said to have been executed by my client in favour of Defendant No. 1.

That my client categorically denies having executed any such sale deed, or having received any consideration whatsoever from Defendant No. 1, or having ever intended to alienate the suit land, in whole or in part, to Defendant No. 1 or to any other person.

3. Illegality in Mutation

That the mutation entry No. 2456 was certified by your office without issuance of the mandatory notice to my client under Section 150 of the Maharashtra Land Revenue Code, 1966, and without affording my client any opportunity of being heard, in gross violation of the principles of natural justice and the statutory procedure prescribed for effecting changes in the record of rights.

That the said mutation is, therefore, void ab initio and liable to be cancelled, and the 7/12 extract is liable to be corrected to reflect my client as the sole occupant of the suit land, as it stood prior to the impugned mutation entry.

4. Demand

My client hereby calls upon you, through this notice, to:

(a) Cancel mutation entry No. 2456 dated 11th July 2024 forthwith, after affording my client a proper hearing in accordance with law;

(b) Restore the 7/12 extract of Survey No. 142, Hissa No. 3, Village Kotawade, to reflect my client, Mr. Dattatray Govind Pawar, as the sole recorded occupant;

(c) Furnish to my client a certified copy of the corrected 7/12 extract and the mutation register entries pertaining to Survey No. 142, Hissa No. 3, for the period 2020 to date;

(d) Restrain Defendant No. 1, his agents, and representatives from interfering with my client's peaceful possession and cultivation of the suit land pending correction of the revenue record.

5. Reservation of Rights

Take notice that in the event the aforesaid grievance is not redressed within the period stipulated above, my client shall have no option but to institute a suit for declaration of title, permanent injunction, and consequential correction of revenue records before the competent Civil Court at Ratnagiri, and shall further be entitled to claim damages, costs of litigation, and such other reliefs as may be available in law, entirely at your risk as to costs.

A copy of this notice is retained in my office for record.

Yours faithfully,

Adv. Prashant M. Kulkarni

Advocate for the Plaintiff

Enrolment No. MAH/3421/2009, Ratnagiri District Bar Association

PLAINT

(Filed under Order VII Rule 1 of the Code of Civil Procedure, 1908)

A. Parties

1. The Plaintiff is a permanent resident of Village Kotawade, Taluka Sangameshwar, District Ratnagiri, and is the recorded occupant and person in actual physical possession of the suit land more particularly described in Schedule 'A' hereto.

2. Defendant No. 1 is a resident of the same village and is a stranger to the title of the suit land, save and except the fraudulent mutation entry referred to hereinafter.

3. Defendant No. 2, the Tahsildar, Sangameshwar Taluka, is impleaded in his official capacity as the revenue authority responsible for maintenance and correction of the record of rights, and no relief for costs is claimed against Defendant No. 2 unless he contests this suit.

B. Jurisdiction

4. The suit land is situated within the local and territorial jurisdiction of this Hon'ble Court, and the cause of action, in part, has also arisen within such jurisdiction. This Hon'ble Court is therefore competent to entertain and try this suit.

5. The value of the suit for the purposes of court fees and jurisdiction is fixed at Rs. 8,50,000/- (Rupees Eight Lakh Fifty Thousand only), being the market value of the suit land as assessed under the Bombay Court Fees Act, 1959, and court fee of Rs. 21,250/- has been paid thereon, receipt whereof is annexed.

C. Facts Constituting the Cause of Action

6. The Plaintiff reiterates and repeats the facts stated in the notice dated 15th January 2025 issued under Section 80 CPC, a copy whereof is annexed hereto as Annexure P-1, and craves leave of this Hon'ble Court to refer to and rely upon the same as if set out verbatim herein.

7. The suit land was originally held by the Plaintiff's late father, Mr. Govind Narayan Pawar, as recorded occupant, and devolved upon the Plaintiff by inheritance upon the former's demise on 14th March 2004, as evidenced by mutation entry No. 1187 dated 22nd September 2004.

8. The Plaintiff has, at all material times since the year 2004, remained in exclusive, continuous, and peaceful possession of the suit land, cultivating paddy in the kharif season and cashew plantation on the elevated portions, and has paid land revenue assessed on the suit land without default, as evidenced by the revenue receipts annexed as Annexure P-2 (colly).

9. The Plaintiff has never at any point of time entered into any agreement, whether oral or written, for the sale, transfer, gift, mortgage, or lease of the suit land, or any part thereof, in favour of Defendant No. 1 or any other person, nor has the Plaintiff received any sale consideration from Defendant No. 1.

10. The Plaintiff states that the purported sale deed dated 2nd June 2024, said to bear the Plaintiff's signature and thumb impression, is a forged and fabricated document, and the Plaintiff's purported execution thereof, if any such document exists, was never made by the Plaintiff, and the Plaintiff shall, if necessary, seek expert opinion on the genuineness of the signature appearing thereon.

11. That Defendant No. 2, acting on the strength of the said forged sale deed, and without following the mandatory procedure prescribed under Section 150 of the Maharashtra Land Revenue Code, 1966 — including issuance of notice to the Plaintiff and other interested persons, and without affording an opportunity of hearing — certified mutation entry No. 2456 dated 11th July 2024, recording Defendant No. 1 as a joint occupant of the suit land.

12. The Plaintiff came to know of the said mutation only on 3rd January 2025, when he applied for and obtained a certified copy of the current 7/12 extract for the purposes of availing an agricultural crop loan, and was shocked and aggrieved to discover the unauthorized and illegal entry therein.

13. Immediately upon such discovery, the Plaintiff caused the notice dated 15th January 2025 to be issued to Defendant No. 2 under Section 80 CPC, calling upon him to correct the record; however, despite the expiry of the statutory period of two months, no action has been taken, necessitating the filing of the present suit.

14. Defendant No. 1 has, subsequent to the impugned mutation, begun to interfere with the Plaintiff's possession by attempting to enter upon the suit land, and has, on or about 20th December 2024, threatened to forcibly harvest the standing cashew crop, giving rise to a reasonable apprehension of dispossession, which necessitates the grant of an injunction pending disposal of the suit.

D. Cause of Action

15. The cause of action for the present suit arose on 11th July 2024, when the impugned mutation entry No. 2456 was certified; it further arose on 3rd January 2025, when the Plaintiff discovered the said entry; and it is a continuing cause of action inasmuch as the wrongful entry continues to subsist in the record of rights and Defendant No. 1 continues to assert rights based thereon, and further arose on 20th December 2024, when Defendant No. 1 threatened to interfere with the Plaintiff's possession.

E. Reliefs Sought

In the premises aforesaid, the Plaintiff respectfully prays that this Hon'ble Court be pleased to:

(a) Pass a decree declaring that the Plaintiff is the sole lawful occupant and owner in possession of the suit land bearing Survey No. 142, Hissa No. 3, admeasuring 1 Hectare 20 Ares, situated at Village Kotawade, Taluka Sangameshwar, District Ratnagiri, more particularly described in Schedule 'A';

(b) Declare the purported sale deed dated 2nd June 2024, and mutation entry No. 2456 dated 11th July 2024 founded thereon, as null, void, and non-est in law, and direct Defendant No. 2 to cancel the said mutation entry and correct the 7/12 extract accordingly;

(c) Grant a decree of permanent injunction restraining Defendant No. 1, his servants, agents, representatives, and all persons claiming through or under him, from entering upon, interfering with, alienating, creating third-party rights over, or in any manner disturbing the Plaintiff's peaceful possession of the suit land;

(d) Pending the hearing and final disposal of the suit, grant a temporary injunction in terms of prayer clause (c) above;

(e) Award costs of the suit to the Plaintiff;

(f) Grant such other and further reliefs as this Hon'ble Court may deem fit and proper in the facts and circumstances of the case, in the interest of justice.

VERIFICATION

I, Dattatray Govind Pawar, the Plaintiff above named, do hereby verify that the contents of paragraphs 1 to 15 of the plaint are true and correct to my own knowledge, and the contents of the remaining paragraphs are based on legal advice received and believed by me to be true, and nothing material has been concealed therefrom.

Verified at Ratnagiri on this 4th day of February 2025.

SCHEDULE 'A' — DESCRIPTION OF SUIT LAND

All that piece and parcel of agricultural land bearing Survey No. 142, Hissa No. 3, admeasuring 1 Hectare 20 Ares (approximately 3 Acres 0 Guntha), situated within the revenue limits of Village Kotawade, Taluka Sangameshwar, District Ratnagiri, Maharashtra, and bounded as follows:

On or towards the North: Survey No. 141 belonging to Mrs. Kamal Ravindra Sawant

On or towards the South: Village cart-track (Gaothan road) leading to Kotawade bus stop

On or towards the East: Survey No. 143 belonging to the Pawar joint family (ancestral, undivided)

On or towards the West: Seasonal nullah (stream) separating the suit land from Survey No. 140

LIST OF DOCUMENTS RELIED UPON

1. Certified copy of 7/12 extract for the years 1978–2004 showing Mr. Govind Narayan Pawar as occupant

2. Mutation entry No. 1187 dated 22.09.2004 evidencing inheritance by the Plaintiff

3. Land revenue payment receipts for the years 2005–2024 (colly.)

4. Certified copy of current 7/12 extract dated 03.01.2025 showing the impugned mutation entry No. 2456

5. Notice dated 15.01.2025 issued under Section 80 CPC along with postal receipt and acknowledgment

6. Photographs of standing crop on the suit land dated December 2024

7. Death certificate of Mr. Govind Narayan Pawar dated 16.03.2004

WRITTEN STATEMENT ON BEHALF OF DEFENDANT NO. 1

(Filed under Order VIII Rule 1 of the Code of Civil Procedure, 1908)

Preliminary Objections

1. That the suit as filed is not maintainable in law or on facts and is liable to be dismissed with costs.

2. That the suit is barred by limitation inasmuch as the Plaintiff had knowledge of the transaction well before the date claimed in the plaint, and has approached this Hon'ble Court with unexplained delay.

3. That the suit is bad for non-joinder of necessary parties, inasmuch as the witnesses to the sale deed dated 2nd June 2024 and the sub-registrar before whom the document was registered have not been made parties.

Reply on Merits

4. That it is denied that the Plaintiff never executed the sale deed dated 2nd June 2024. On the contrary, Defendant No. 1 states that the Plaintiff, being in need of funds for his daughter's marriage, approached Defendant No. 1 in April 2024 and offered to sell the suit land for a total consideration of Rs. 7,20,000/-, which was duly paid partly by cheque and partly in cash, and the sale deed was executed and registered before the Sub-Registrar, Sangameshwar, on 2nd June 2024 in the presence of independent witnesses.

5. That the mutation entry No. 2456 was validly and legally certified by Defendant No. 2 in the ordinary course of revenue administration, based on the registered sale deed, and no fraud or illegality is attributable to Defendant No. 1.

6. That Defendant No. 1 denies having threatened the Plaintiff or having attempted to forcibly harvest any crop, and states that he has merely sought to take possession of land lawfully purchased by him, which the Plaintiff has refused to hand over despite repeated requests.

7. In the premises, Defendant No. 1 prays that the suit be dismissed with costs.

ISSUES FRAMED BY THE COURT

(Under Order XIV of the Code of Civil Procedure, 1908, vide order dated 18th April 2025)

1. Whether the Plaintiff proves that he is the lawful occupant and owner in possession of the suit land as on the date of the suit?

2. Whether the Plaintiff proves that the sale deed dated 2nd June 2024 is forged and fabricated, and that he never executed the same?

3. Whether Defendant No. 1 proves that the sale deed dated 2nd June 2024 was validly executed by the Plaintiff for valid consideration?

4. Whether the mutation entry No. 2456 dated 11th July 2024 was certified in violation of the procedure prescribed under Section 150 of the Maharashtra Land Revenue Code, 1966?

5. Whether the Plaintiff is entitled to a decree of permanent injunction as prayed?

6. Whether the suit is barred by limitation?

7. Whether the suit is bad for non-joinder of necessary parties?

8. What order and decree?

Interim Order on Temporary Injunction Application (Exh. 5)

Having heard the learned counsel for both parties, and considering that the Plaintiff has, prima facie, shown continuous possession of the suit land supported by revenue receipts up to the year 2024, and that the balance of convenience lies in favour of maintaining status quo pending trial, and that irreparable harm would be caused to the Plaintiff if the standing crop is disturbed, this Court is of the view that this is a fit case for grant of ad-interim relief.

It is hereby ordered that Defendant No. 1, his agents, and representatives shall maintain status quo with respect to possession of the suit land bearing Survey No. 142, Hissa No. 3, Village Kotawade, and shall not interfere with the standing crop thereon, until further orders of this Court. Defendant No. 2 is directed to file an affidavit explaining the circumstances of certification of mutation entry No. 2456 within four weeks.

ORDER SHEET

Date: 18th April 2025

Present: Adv. Prashant M. Kulkarni for the Plaintiff; Adv. Anjali R. Desai for Defendant No. 1; Assistant Government Pleader for Defendant No. 2.

Issues framed as above. Application for temporary injunction (Exh. 5) allowed as per separate order. Defendant No. 2 directed to file affidavit within four weeks. Matter to be listed for framing of additional issues, if any, and for recording of Plaintiff's evidence.

Next date fixed: 16th June 2025, for recording of evidence of PW-1.

NOTE FOR THE PARTIES

Parties are informed that the next hearing will deal with recording of evidence. The Plaintiff shall remain present with all original documents referred to in the List of Documents on the date fixed. Any party unable to remain present must file an appropriate application seeking exemption or adjournment, well in advance of the said date, failing which the matter may proceed ex parte.

NOTE: This is a fictional sample legal document created for software-testing purposes only (to test document parsing / summarization tools). All names, places, survey numbers, and case details are entirely fictitious and do not refer to any real person, property, or ongoing litigation. It should not be used, relied upon, or treated as an actual legal document, precedent, or source of legal advice.